

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EDGAR PLACENCIO and JOSUA PLACENCIO,

Plaintiffs,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. CALVIN REYES, Shield # 2199; P.O. ANGELA POLANCOBRITO, Shield # 4956; DET. ISAAC MONTALVO; and P.O. JOHN DOES # 1-5, the individual defendants sued individually and in their official capacities,

Defendants.

Index:

Basis of Venue: occurrence of incident – 34th Precinct, New York, New York (4295 Broadway, New York, NY 10033)

----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
April 25, 2018

MICHAEL O. HUESTON, ESQ.

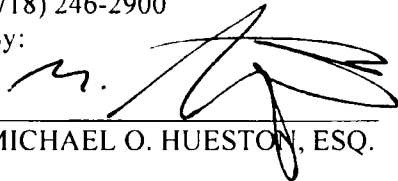
Attorney for Plaintiffs

16 Court Street, Suite 3301

Brooklyn, New York 11241

(718) 246-2900

By:


MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; P.O. CALVIN REYES, Shield # 2199, P.O. ANGELA POLANCOBRITO, Shield # 4956; DET. ISAAC MONTALVO; and P.O. JOHN DOES # 1-5, 34th Precinct, 4295 Broadway, New York, NY 10033, and/or 9th Precinct, 321 E. 5th Street, New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

EDGAR PLACENCIO and JOSUA PLACENCIO,

Plaintiffs,

-against-

THE CITY OF NEW YORK; P.O. CALVIN REYES,
Shield # 2199; P.O. ANGELA POLANCOBRITO, Shield #
4956; DET. ISAAC MONTALVO; and P.O. JOHN DOES
1-5, the individual defendants sued individually and in
their official capacities,

Defendants.

-----X

Plaintiffs Edgar Placencio and Josua Placencio, by and through their counsel,

Michael O. Hueston, Esq., upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiffs seeks relief for the violation of plaintiffs' rights secured by 42 U.S.C. § 1983; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiffs' claims arise from an incident that arose on or about January 27, 2017. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiffs to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; denial of a fair trial; malicious prosecution; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiffs seek compensatory and

punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiffs served upon defendant City of New York Notices of Claim setting forth the name and post office address of plaintiffs, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiffs' demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York has not requested a physical examination of Plaintiffs. Plaintiffs have satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrences herein.

5. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York and individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, New York County; and jurisdiction is proper because the Supreme Court of the State New York, New York County has jurisdiction over plaintiffs' state law causes of actions, and plaintiffs' federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Edgar Placencio is a resident of the State of New York, Bronx County, living at 3075 Heath Avenue, Apt. 6F, Bronx, New York 10463.

7. Plaintiff Josua Placencio is a resident of the State of New York, Bronx County, living at 3075 Heath Avenue, Apt. 6F, Bronx, New York 10463.

8. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

9. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

10. At all times alleged herein, defendants P.O. Calvin Reyes, Shield # 2199; P.O. Angela Polancobrito, Shield # 4956; Det. Isaac Montalvo; and P.O. John Does # 1-5 were employed as police officers with 34th Precinct, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

12. On January 27, 2017, several police officers operating from the 34th Precinct, located in New York County, New York, including upon information and belief, the individual defendants P.O. Calvin Reyes, Shield # 2199; P.O. Angela Polancobrito, Shield # 4956; Det. Isaac Montalvo; and P.O. John Does # 1-5 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

13. On January 27, 2017 at approximately at 7:00 p.m., at and in the vicinity of the 34th Precinct, New York, New York (4295 Broadway, New York, NY 10033), the police

without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime unlawfully arrested plaintiffs.

14. Earlier, on January 27, 2017, a group of individuals attacked and robbed plaintiff Josua Placencio while he was at a local intermediate school participating in “open gym.”

15. Upon information and belief, the group also attacked other individuals during this time at the location.

16. Upon information and belief, NYPD School Safety Officers reported the incident, and NYPD police officers arrived at the scene.

17. Plaintiff Josua Placencio discussed what happened to him with a NYPD detective, and the detective told him that he should make a report at the 34th Precinct.

18. Plaintiff Josua Placencio called his brother plaintiff Edgar Placencio.

19. Plaintiffs Josua Placencio and Edgar Placencio went to the 34th Precinct to report the incident, with their sister.

20. At the 34th Precinct, plaintiffs attempted to file a report with the police and show them where plaintiff Josua Placencio’s assailants had stabbed him.

21. Rather than assist plaintiffs, the police were rude and dismissive.

22. When plaintiffs again tried to make the report, the police continued their rude, dismissive and abusive behavior.

23. Plaintiffs’ sister took out her phone to record the conduct of the police, and the police rushed and grabbed plaintiffs.

24. The police struck and kicked plaintiffs.

25. The police handcuffed plaintiffs in excessively tight handcuffs.

26. The police had no basis to arrest to plaintiffs.

27. The police held plaintiffs at the 34th Precinct.

28. The police transported plaintiffs to Central Booking for arraignment.

29. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or conversations, falsely and maliciously told the New York County District Attorney's Office that plaintiffs had committed various crimes, and the District Attorney prosecuted plaintiffs for among other things, obstruction of governmental administration.

30. At arraignment, plaintiffs were released on their own recognizance.

31. Plaintiffs' criminal cases were dismissed in their entirety on or about May 2017, terminating in plaintiffs' favor.

32. Plaintiffs were humiliated and embarrassed by the experience.

33. Plaintiffs suffered physical injuries.

34. Plaintiffs suffered financial loss.

General Allegations

35. Plaintiffs did not resist arrest at any time during the above-described incidents.

36. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

37. The individual defendants did not observe plaintiffs violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

38. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

39. As a direct and proximate result of defendants' actions, plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

40. Plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

41. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants unlawfully searched and seized plaintiffs without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

43. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

44. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants unlawfully searched and seized plaintiffs without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

46. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

47. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

49. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM**(FALSE ARREST UNDER STATE LAW)**

50. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

52. Accordingly, defendants are liable to plaintiffs for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

53. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

54. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

55. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs.

56. Those defendants who did not touch plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

57. Accordingly, the defendants are liable to plaintiffs for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

58. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiffs placed them in fear of imminent harmful and offensive physical contacts.

60. Accordingly, defendants are liable to plaintiffs under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

61. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiffs were illegal physical contacts.

63. Accordingly, defendants are liable to plaintiffs under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

64. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

66. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

67. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

68. Defendants are liable to plaintiffs because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiffs under 42 U.S.C. § 1983.

TENTH CLAIM

(DENIAL OF A FAIR TRIAL)

69. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

70. The individual defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against plaintiffs, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

71. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

72. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiffs of liberty without due process of law or a fair trial. and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

73. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

74. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

75. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

76. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

77. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELFTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

78. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

79. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

80. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

81. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

THIRTEENTH CLAIM

(MONELL CLAIM)

82. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

83. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

84. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) arresting innocent persons in order to meet productivity goals and without cause; (2) using unreasonable force on individuals; and (3) fabricating evidence against innocent persons.

85. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

86. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

87. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

88. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

89. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

90. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

FOURTEENTH CLAIM

(RESPONDEAT SUPERIOR)

91. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

92. The individual defendants were acting within the scope of their employment when they committed the above-described acts against plaintiffs, including falsely arresting, assaulting, battering, and maliciously prosecuting plaintiffs.

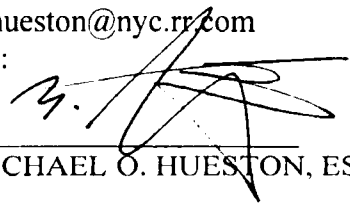
93. The City of New York is therefore vicariously liable to plaintiffs under New York State law for the aforesaid torts.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
April 25, 2018

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiffs
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:

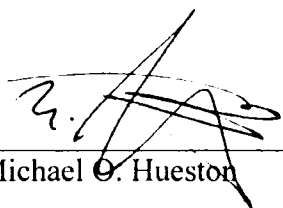

MICHAEL O. HUESTON, ESQ.

VERIFICATION

MICHAEL O. HUESTON, ESQ., an attorney at law, duly admitted to the Bar of the State of New York, affirms under penalties of perjury pursuant to CPLR § 2106 to the truth of the following:

I am the attorney for plaintiffs Edgar Placencio and Josua Placencio. I have read the forgoing complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, as to those matters I believe them to be true. I make this verification instead of the plaintiffs pursuant to CPLR § 3020 because the plaintiffs reside in a different county than where I maintain my office.

Dated: Brooklyn, New York
April 25, 2018



Michael O. Hueston

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

EDGAR PLACENCIO, et al.,

Plaintiffs,

-against-

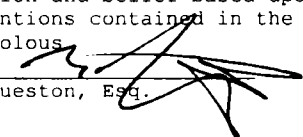
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHAEL HUESTON, ESQ.
Attorneys for Plaintiffs
16 Court St., Suite 1800
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney
duly admitted to practice law in the State of New York,
certifies that, upon information and belief based upon
reasonable inquiry, the contentions contained in the
annexed document are not frivolous.

Dated: 4/25/2018 Signature: 

Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2018

....., Esq.

Attorney for.....